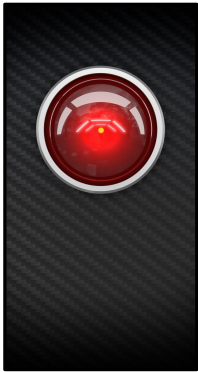


PHIL 1001

ETHICS FOR THE DIGITAL AGE

Week 06b, Deontology II:

The **Formula of Humanity**
and the
Doctrine of Double-Effect



1

Agenda

- I. Recap: Kant's Formula of Humanity
- II. Do Theories like FH rule out all harming?
- III. D. Double Effect as a supplement/elaboration?
- IV. A Problem case for D.D.E.?

2

Part I: Recap: Formula of Humanity



3

FH: an act-token, x , is morally right if and only if

- (i) in performing x , the agent does not treat any person as a mere means to an end, and
- (ii) x is consistent with treating all persons as ends in themselves.

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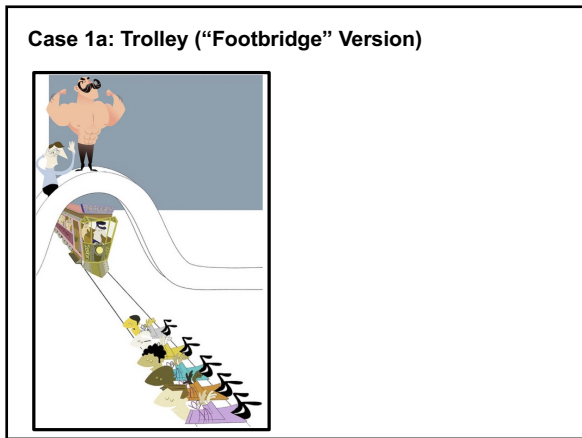
Part II Do Deontological Theories (like Kant's) Rule out all harming?



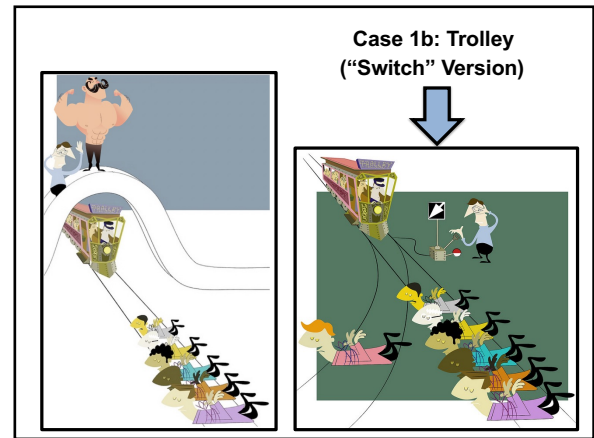
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Pair 1: Trolley Cases

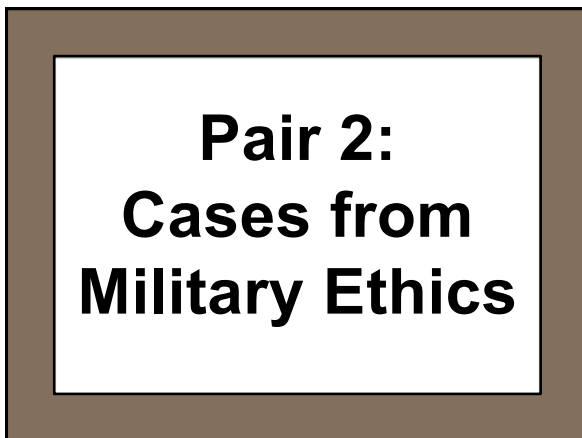
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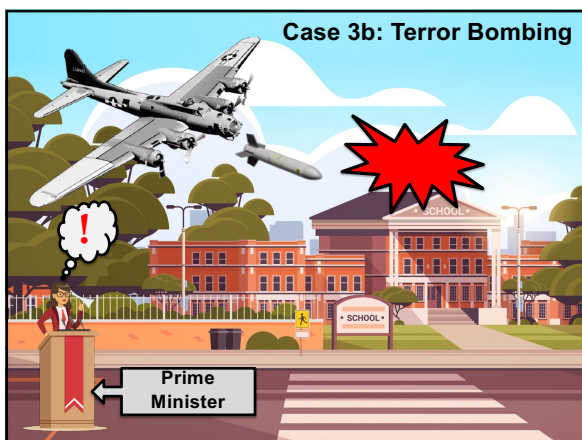
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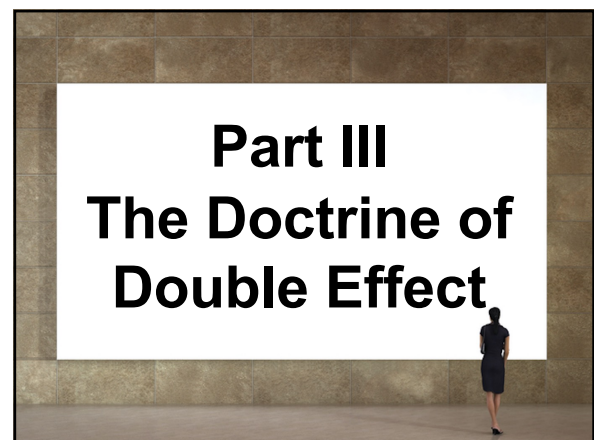
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12

Thomas Aquinas (1225 – 1274)



13

“Is it lawful for a person
to kill another
in self-defense?”

14

“...nothing prevents one action from having **two effects, only one of which is intended**, and **the other of which is unintended**.”

"But... **what one intends** specifies moral actions, not what one does not intend, since the latter is incidental.

“Therefore, one’s action in defending oneself can have two effects: [1] saving one’s life, and [2] slaying the aggressor.

“And so such acts of self-defense, as one intends by them to preserve one’s life, do not have the character of being unlawful...”

Aquinas (*Summa Theologica* II-II, Q64).

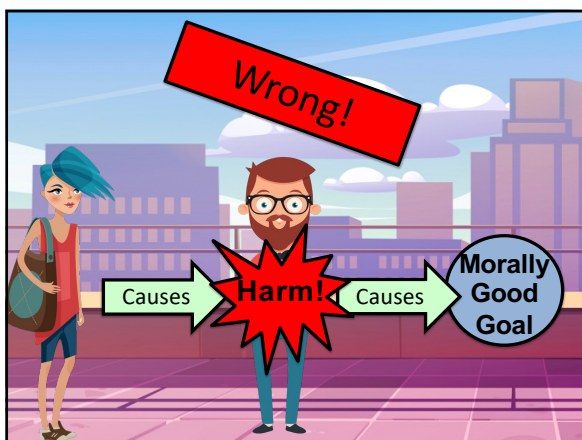
i.e., determines whether the act is right or wrong

The Doctrine of Double-Effect

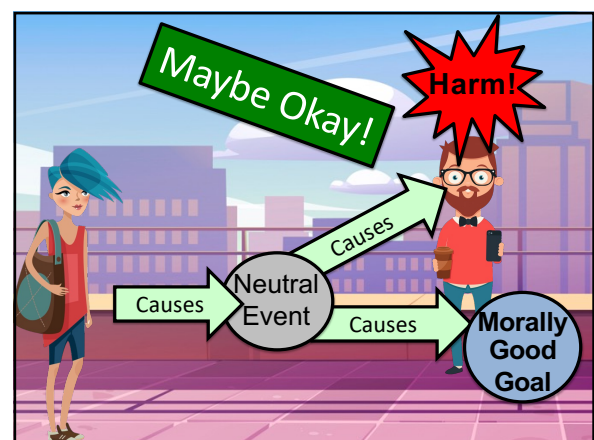
It is morally permissible to perform an act that foreseeably harms a person
provided that:

- (a) The **directly intended** effect of the act is good
- (b) **The foreseen harm is not directly intended**
(not even as a means to the good effect)
- (c) The intended good effect is *sufficiently good*
to outweigh the harm. (Proportionality)
- (d) *No more harm is caused than is necessary*
to achieve the intended good result. (Necessity)

16



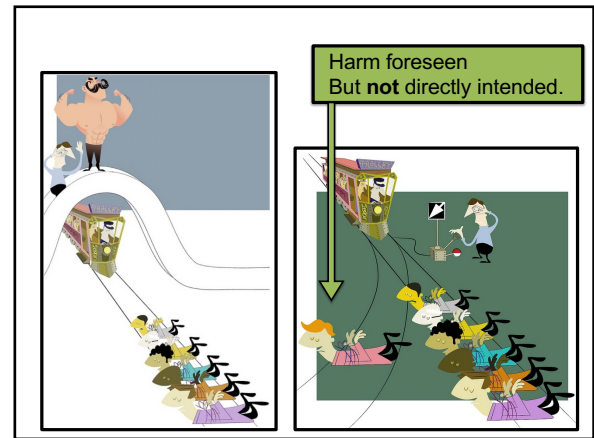
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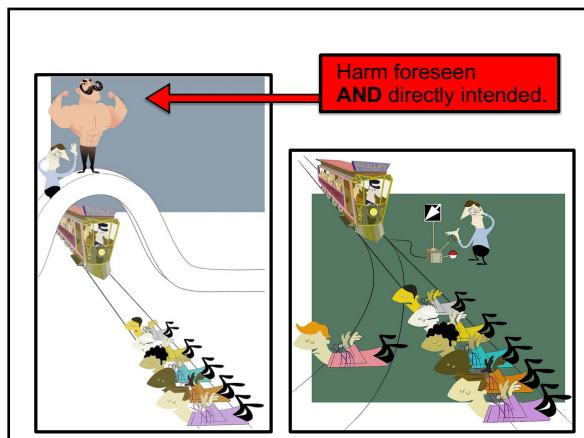
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DDE as a solution to the pairs of cases?

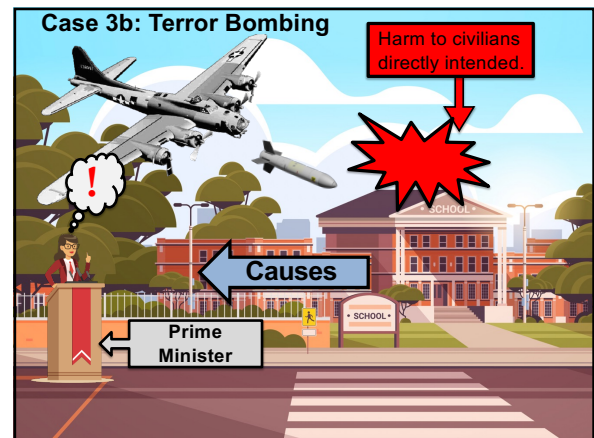
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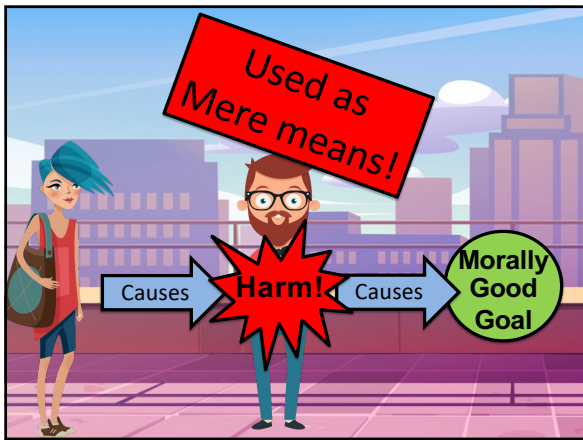
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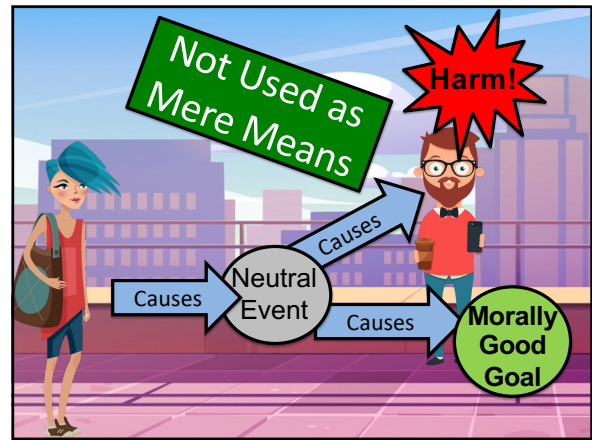
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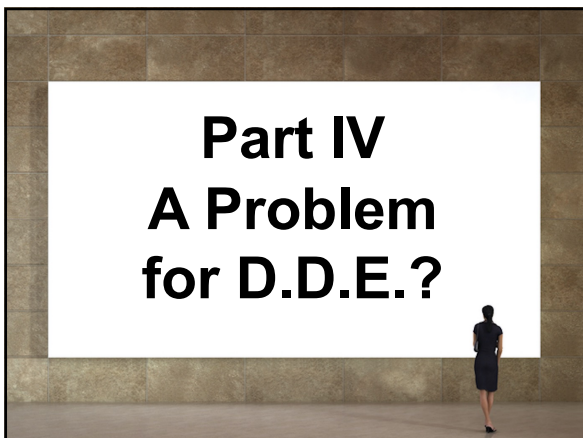
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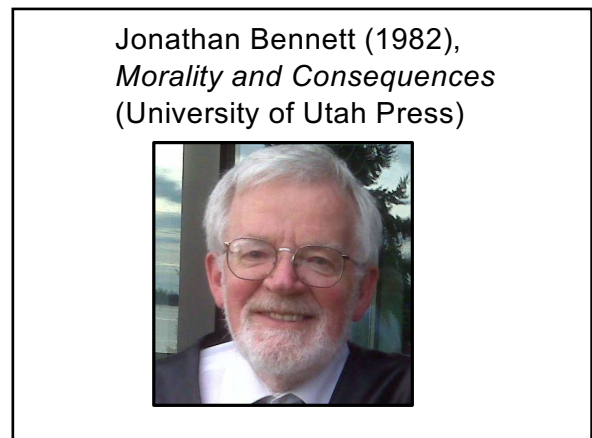
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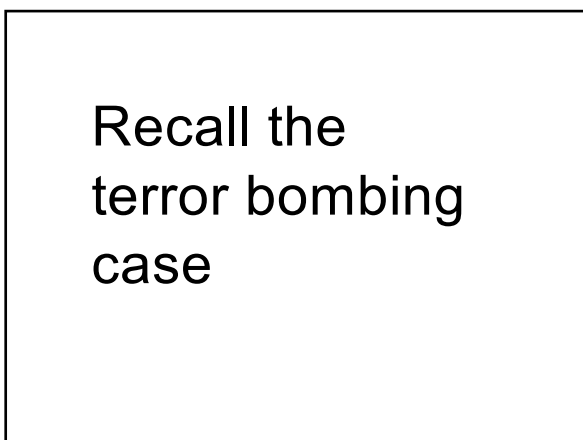
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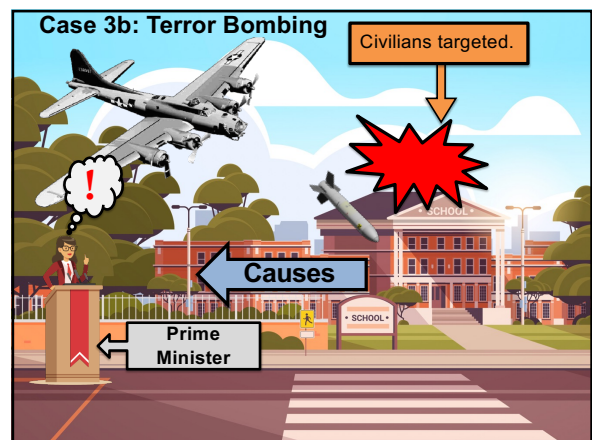
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Couldn't the terror bomber be directly intending something less than **the death** of the civilians?

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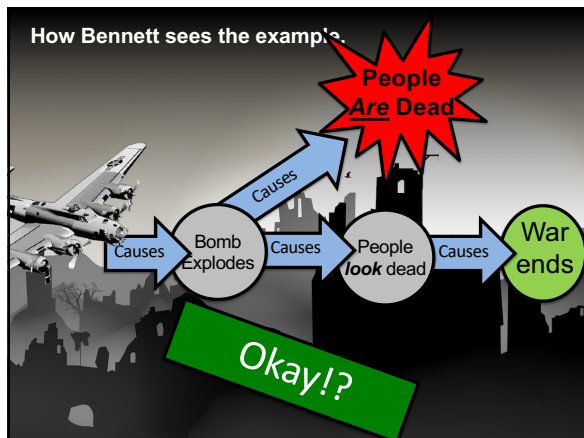
"All that was intended was that the **people's bodies should be inoperative** for long enough to cause a general **belief that they were dead**, this belief lasting long enough to speed the end of the war..."

Of course the terror bomber knew that people would become not merely inoperative for a while but downright dead – he had no hope of achieving the lesser thing [i.e. **inoperativeness**] without achieving the greater [i.e., **both inoperativeness and death**].

But the greater thing is complex, and only one constituent in it [i.e. inoperativeness] was intended as a means."

Bennett (1981: 111).

32



33

The reluctant terror-bomber argument vs. DDE

P1. If DDE is true, then the reluctant terror bomber's act of bombing civilians is morally permissible.

P2. It is **not the case** that the reluctant terror bomber's act of bombing civilians is morally permissible.

C. It is not the case that DDE is true.

34

An Objection to Bennet's Argument

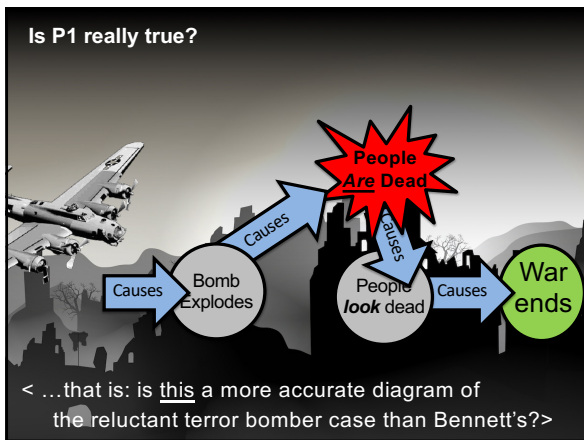
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Is P1 really true?

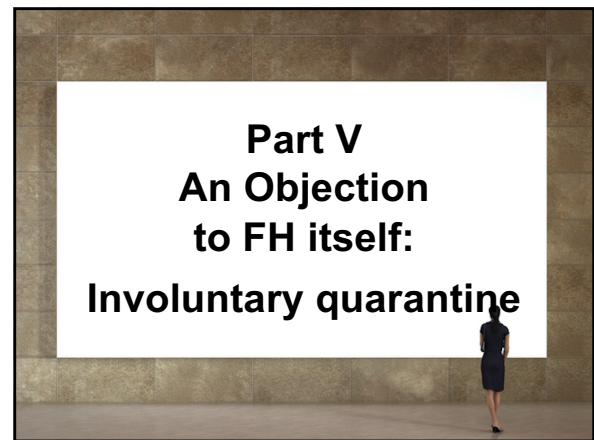
Is *this* [below] really an appropriate model for describing the casual chain leading to the war's end?



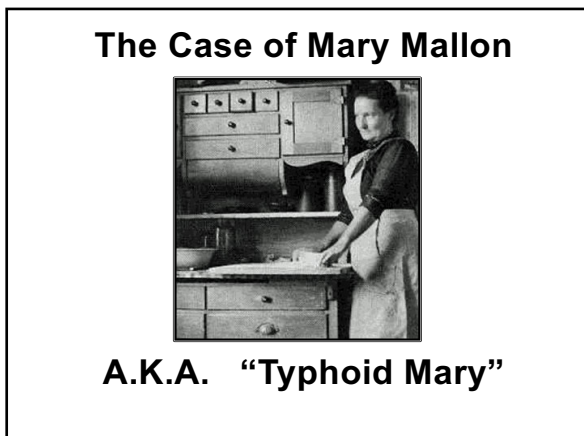
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39

Quarantine Argument vs. FH

P1. In forcibly quarantining Mary, the community treated her as a mere means.

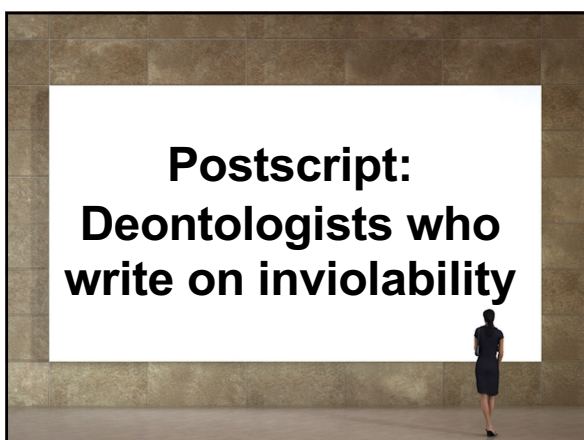
P2. If P1 is true, **then** if FH were true, the act of forcibly quarantining Mary was morally wrong.

SC. If FH were true, **then** the act of forcibly quarantining Mary was morally wrong. (From P1, P2, by Modus Ponens)

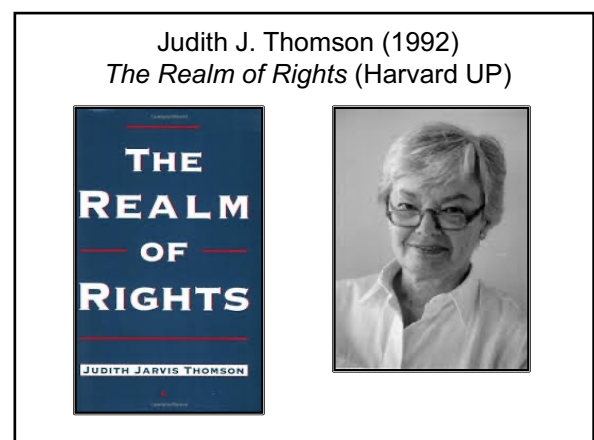
P3. **It is not the case** that the act of forcibly quarantining Mary was morally wrong

C. FH is **not** true. (From SC, P3, by Modus Ponens)

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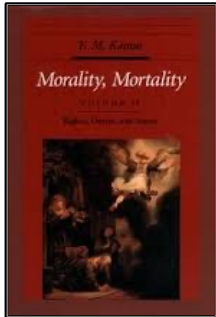


41



42

Frances M. Kamm (1996)
Morality, Mortality (Vol.II) (Oxford UP)



43



44